

Attachment 4c – Task Order Procedures
Front Range Multiple Award Construction Contract (FRMACC)
RFP # FA251719RA016
REVISED 15 June 2023

1. NOTICE TO PROCEED (NTP):

A NTP will be issued for each Task Order (TO) placed against the base contract. Each location may have a different timeframe for issuing a NTP. Typically, NTPs are issued within ten days after TO award. The Contracting Officer (CO) reserves the right to determine the issue date of any NTP.

2. TASK ORDER PROCEDURES:

After award of initial contracts, it is the Government's intention to allow all FRMACC contractors to compete for TOs. However, in rare occasions, the Government may elect not to solicit to all awardees in accordance with DFARS 216.505-70, *Orders under multiple award contracts*. This restricted competition may be to meet minimum order amounts, work requiring special skills or trades, or urgent and compelling schedules.

a. Fair Opportunity Proposal Request (FOPR):

TOs shall be issued on a Firm-Fixed Price (FFP) basis only. TOs will be awarded pursuant to FAR

16.505(b) "*Orders under multiple-award contracts.*"

As requirements are identified, Civil Engineering (CE)/Directorate of Public Works (DPW), or other customer(s) will submit a Fair Opportunity Proposal Request (FOPR) package to their respective Contracting Office describing the Government's requirements (Statement of Work (SOW), drawings, submittal schedule, etc.), performance location (secure or non-secure area), working hours, period of performance (i.e. 100 days), performance start date (i.e. 10 days after award). Based on the Independent Government Estimate dollar value for this FOPR, the CO will assign the FOPR package to the appropriate tier level. All projects will remain in the tier level assigned by the CO, regardless if the proposal received is above or below the tier threshold (e.g., project assigned to Tier 1 and the proposal comes in at \$260K, it will remain in Tier 1 or project assigned to Tier 2 and the proposal comes in at \$245K, it will remain in Tier 2). See Specification 01 01 00, para 10 for additional FOPR details.

At the TO level, based on the Government's best interest, future projects under Tier 1 will either be competed amongst all Tier 1 awardees or be directly awarded to a Tier 1 awardee on a rotational basis. At the TO level, based on the Government's best interest, future

projects under Tier 2 will either be competed amongst all Tier 2 awardees (to include Tier 1 awardees).

- i. **Competitive Award:** All FRMACC Indefinite Delivery/Indefinite Quantity (IDIQ) awardees with an effective date are immediately available to compete on TO solicitations within their respective tier level. “To Be Determined” (TBD) IDIQ awardees will be able to compete on TOs if they are on-ramped into their respective tier and provided an effective date on their contract. It is anticipated that the majority of the TOs will be awarded based on competition; however, the Government reserves the right to award TOs in accordance with the terms and conditions of the contract and FAR 16.505 (b)(2), *Exceptions to the fair opportunity process*.
 - ii. **Rotationally Direct Award:** In accordance with the terms and conditions of the contract and FAR 16.505 (b)(2), *Exceptions to the fair opportunity process*, the CO shall give every awardee a fair opportunity to be considered for a TO exceeding \$3.5K unless a statutory exception applies. This restricted competition may be used to satisfy minimum guarantee, work requiring unique or highly specialized skills or trades, or urgent and compelling schedules. The Government intends to direct award an initial TO to each effective awardee to satisfy the minimum guarantee. Tier 1 awardees will be considered for rotational direct award for Tier 1.
- b. **Project Documents:** For each TO, the Contractor will be furnished one electronic copy of the SOW, one electronic set of drawings, design guides, and/or a submittal schedule, if applicable. The level of the design provided to the Contractor will be anywhere from a basic concept to a complete design package. See Specification 01 01 00, para 10.1 for additional information.
- i. **Design-Build:** The FOPR will provide contractors a scope of work (i.e. Design-Build SOW) that defines the project and states the Government’s requirements. The scope of work may include criteria and preliminary design, budget parameters, schedule or delivery requirements, and other supporting information necessary for offerors to understand the project requirements in order to prepare their proposals. FRMACC contractors shall provide a price proposal, and may be required to provide technical proposals, past performance information, and/or a proposed performance period (as stated in each TO). The Government will evaluate submitted proposals in accordance with the factor(s) in each FOPR. Only the successful offeror will be required to proceed with the subsequent design effort (i.e. 35%, 65%, 95% and/or 100% as stated in each TO) and to execute construction.
- ii. **Construction Only:** The Government will provide FRMACC contractors a previously accomplished design consisting of drawings, specifications, design analysis and/or other data. Based on this accomplished design, FRMACC

contractors shall provide a price proposal, and may be required to provide past performance information and/or a proposed performance period (as stated in each TO). The Government will evaluate submitted proposals in accordance with the factor(s) in each FOPR. Only the successful offeror will be required to proceed with construction.

If an IDIQ awardee is associated with the Architect–Engineer (A-E) contractor, its subsidiaries, or affiliates who designed the project, the IDIQ awardee shall be excluded from competition in order to prevent an unfair competitive advantage.

- c. **Site Visit:** Upon issuance of the FOPR, the Government and contractors may conduct a pre-proposal site visit for each TO. See Specification 01 01 00, para 10.2 for additional information. The FAR clauses, 52.236-2, *Differing Site Conditions* and 52.236-3, *Site Investigation and Conditions Affecting the Work*, are included in the contract. When a pre-proposal site visit is anticipated, contractors are urged and expected to inspect the site. Any questions developed as a result of the site visit shall be submitted to the CO in writing as stated in the FOPR.
 - d. **Period of Performance (PoP):** At the TO level, each FOPR issued will include a Government negotiable or mandatory PoP. The CO will have the final decision regarding the PoP and will incorporate revised FAR clause 52.211-10, *Commencement, Prosecution, and Completion of Work*. For excusable delays, refer to FAR 52.249-10, *Default (Fixed-Price Construction)*.
 - e. **Liquidated Damages:** Liquidated damages, if applicable, will be specified within each TO.
 - f. **TO Evaluation:** It is the Government’s intention to allow all FRMACC contractors to compete for TOs based on any method from the best value continuum. TOs will typically be awarded on a Lowest Price Technically Acceptable (LPTA) basis. However, the Government reserves the right to use tradeoff evaluation procedures in accordance with DoD Source Selection Procedures and evaluating on Price only. Typically, the evaluation methods will correspond with the level of design or complexity of the proposal to be submitted.
 - g. **TO Award Process:** All TOs as defined in this contract will be formally executed by the issuance of a DD Form 1155, *Order for Supplies or Services*. The Government will notify all contractors from whom proposals were received in response to the FOPR when that TO is awarded.
3. **PROPOSAL PROCEDURES:** All contractors are highly encouraged to submit a proposal for every FOPR under this contract for which the contractor is eligible to respond. If a contractor chooses not to submit a proposal under a FOPR, the contractor must submit a letter stating their reason for not proposing. At a minimum, each contractor shall propose on at least 75% of all FOPRs within their tier, annually from date of contract award for each organization. The response rate of each contractor will be calculated each year on the

anniversary date of the award. Contractors who fail to meet this requirement may be off-ramped, at the sole discretion of the FRMACC CO. Note: TO proposal preparation fees will not be reimbursed to any FRMACC contractors. The following describes the typical procedures for proposal submission requirements:

- a. **Contractor's Proposal:** Each TO FOPR will identify the contractor's proposal due date.
- b. **Price Proposal:** Contractor may use AF Form 3052 Construction Cost Breakdown or similar format for their TO price proposal. Contractors will utilize their not-to-exceed fully-burdened hourly labor rates for a Project Manager, Project Superintendent, and/or Quality Control Inspector when preparing their price proposal. Based on individual TO requirements, TOs may include all, some, or none of these labor categories.
- c. **Bonding:** See FAR clause 52.228-15, *Performance and Payment Bonds-Construction*. Contractors shall consider the cumulative effects of TOs placed against this contract and warranty requirements in determining total bonding liability and costs. The Government's minimum bonding requirement is not necessarily the amount on which the surety company may base the contractor's premium charge for the bonding requirements of the resultant contract. FRMACC TBD IDIQ awardees will only be required to secure the required performance and payment bonds once they are on-ramped into their respective tier.
 - i. **Performance Bonds (Standard Form 25):** The contractor shall provide a Bonding Commitment Letter yearly to show bond capacity of at least \$10M to the Procurement Contracting Officer (PCO) on the 15th day of August of each year. The contractor shall provide performance bonds on all task orders over the threshold of \$150,000. The contractors will provide a performance bond in the full amount of the TO award to the Administrative Contracting Officer (ACO) who issues the TO.
 - ii. **Payment Bonds (Standard Form 25-A):** The contractor shall provide a Bonding Commitment Letter yearly to show bond capacity of at least \$10M to the Procurement Contracting Officer (PCO) on the 15th day of August of each year. The contractor shall provide payment bonds on all task orders over the threshold of \$35,000. The contractors will provide a payment bond in the full amount of the TO award to the Administrative Contracting Officer (ACO) who issues the TO.

4. CONTRACT ADMINISTRATION:

a. Contract Administration: The FRMACC is a multiple-installation contract. The Peterson SFB Contracting Office is hereby designated as the PCO. The duties of the PCO include, but are not limited to:

- Exercise of option periods
- Negotiation of all modifications that affect the terms and conditions of the base contract
- Insurance, payment and performance bonding, monitoring for the base contract - On/off-ramping
- Issues that affect, or may affect, the base contract, including but not limited to show cause and cure notices issued, default, security violations, disputes, labor relations, changes to the specifications, etc., will be coordinated through the PCO
- Contractor Performance Assessment Reporting System (CPARS) (All TOs over \$700K, ACOs will prepare CPARS)

b. In addition to the PCO duties, the Peterson SFB Contracting Office will conduct ACO responsibilities, to include day-to-day contract administration responsibilities for Peterson SFB and Cheyenne Mountain SFS. All other FRMACC organizations listed below will perform ACO duties. The duties of the ACO include, but are not limited to solicitation, negotiation, award, administration and closeout of TOs.

c. Contracting Offices:

(PCO)/(ACO) Peterson SFB: 21 CONS/PKA
580 Goodfellow St, Bldg 1324
Peterson SFB, Colorado 80914
(719) 556-4389, FAX: 556-7881

(ACO) Cheyenne Mountain SFS: 21 CONS/PKA
580 Goodfellow St, Bldg 1324
Peterson SFB, Colorado 80914
(719) 556-4389, FAX: 556-7881

(ACO) Ft Carson Army Post: Department of the Army
918th Contracting Battalion
Mission and Installation Contracting Command
1676 Evans St. Bldg. 1220

Fort Carson, Colorado 80913-4310
(719) 526-6623, FAX: 524-0181

(ACO) Schriever SFB: 50 CONS/PKA
210 Falcon Parkway, Suite 2116
Schriever SFB, Colorado 80912-2116
(719) 567-5244, FAX: 567-3438

(ACO) United States
Air Force Academy: 10 CONS/PKA
8110 Industrial Drive Suite 200
USAF Academy, Colorado 80840-2303
(719) 333-2074, FAX: 333-6608

(ACO) Buckley SFB: 460 CONS/PKA
510 S. Aspen St. (MS 92)
Buckley SFB, Colorado 80011
(720) 847-6447, FAX: (720) 847-6443

(ACO) Colorado Air Guard: 140 MSG/MSC
Air Guard Contracting Office
18860 E. Breckenridge Ave, Bldg 801, MS#78
Buckley AFB, Colorado 80011-9564
(720) 847-9498, FAX: (720) 847-9136

(ACO) FE Warren AFB: 90 CONS/PKA
7505 Barnes Loop
F.E. Warren AFB, Wyoming 82005-2860
(307) 773-3689, FAX: (307) 773-6829

- d. **Performance Evaluation Meetings:** The contractor's personnel responsible for managing the FRMACC Program Manager or their designated representative shall be required to attend meetings, as scheduled and as needed, with each organization's ACO and their respective CES/DPW, to discuss TO progress and quality of work being performed.
- e. **Invoicing Procedures:** The contractor shall submit one (1) copy of their invoice to the respective ordering office for each TO in IAW FAR 52.232-5, *Payments Under Fixed-Price Construction Contracts*. All invoices submitted under this contract must contain the following information IAW DFARS 252.232-7003, *Electronic Submission of Payments Requests and Receiving Reports*. Failure to follow these procedures may cause a delay in invoice payment. Specific payment instructions may be included in each TO.
- f. **Accounting and Appropriation Data:** Accounting, appropriation data, and payment offices will be cited at the TO level.

- g. Release of Claims:** Upon completion of the work and prior to the final payment for each TO, the contractor shall be required to furnish the ACO a Release of Claims as specified by FAR clause 52.232-5(h)(3), *Payments Under Fixed-Price Construction Contracts*.
- h. Telephone Communication Security Monitoring:** All communications with DoD organizations are subject to TEMPEST review. Contractor personnel will be aware telephone communications networks are continually subject to intercept by unfriendly intelligence organizations. The DoD has authorized the military departments to conduct TEMPEST monitoring and recording of telephone call originating from, or terminating at DoD organizations. Therefore, civilian contractor personnel are advised any time they place a call to, or receive a call from an USAF/USA organization, they are subject to TEMPEST procedures. The contractor will assume the responsibility for ensuring wide and frequent dissemination of the above information to all employees dealing with DoD information.

5. CPARS

The Government will perform an assessment of each Task Order (TO) over the threshold of \$750,000. Past performance evaluations shall be prepared at least annually and/or at the time the work under each TO is completed. Past performance information shall be entered into CPARS, <https://www.cpars.gov/>, the Government-wide evaluation reporting tool for all past performance reports on contracts and orders.

- a.** CPARS past performance evaluations will be prepared at the TO level IAW FAR.
- b.** All Front Range organizations will be required to input CPARS for all TOs over the CPARS Threshold.
- c.** All CPARS ratings below a Satisfactory, must be reported to the PCO. Please send the PCO the contractor's name, task order number and rating.